

24NNCV05478 24NNCV05478

County: los-angeles

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Case Number: 24NNCV05478 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: September 18, 2026

Case No: 24NNCV05478 Trial Date: Not yet set

Case Name: Mageno v. LKATEE Collective, Inc., et al.

MOTION FOR ATTORNEY FEES

[42 U.S.C. § 12205]

Moving Party: Defendant, Lkatee Collective, Inc.

Responding Party: Plaintiff, Perla Mageno

RELIEF REQUESTED:

Grant attorneys' fees in the amount of \$35,685.00.

CAUSES OF ACTION: from Complaint

1) Violations of the Americans with Disabilities Act

2) Violations of the Unruh Civil Rights Act

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evidence Code, § 452, subd. (d).)

Pursuant to Plaintiff’s request, the Court takes judicial notice of the following: (1) Plaintiff’s Complaint, filed October 31, 2024; (2) Plaintiff’s Amendment to Complaint naming OFD America, LLC as Doe Defendant 1, filed January 29, 2026; (3) The Court’s Minute Order dated March 13, 2026, adopting its tentative ruling and granting Defendant Lkatee Collective, Inc.’s Motion for Summary Judgment; (4) Notice of Entry of Judgment, filed April 1, 2026, with the Order of Dismissal and Judgment entered March 17, 2026; (5) Defendant’s Memorandum of Costs, filed April 1, 2026; (6) Declaration of Woochan Kwon in Support of Defendant’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication, with Exhibit A thereto, filed December 23, 2025; (7) Supplemental Declaration of Woochan Kwon in Support of Defendant’s Reply, with Exhibit A thereto, filed March 2, 2026.

SUMMARY OF FACTS:

Plaintiff Perla Mageno (“Plaintiff”) is a visually-impaired and legally blind person who requires screen-reading software (“SRS”) to read website content using a computer. Plaintiff alleges that defendant Lkatee Collective, Inc. (“Lkatee”) fails to operate its website, www.olferrydonut.com, to be fully accessible to, and independently usable by, Plaintiff and other blind or visually-impaired people. Plaintiff alleges that during separate visits to the website, Plaintiff encountered multiple access barriers which denied Plaintiff full and equal access to the facilities, goods, and services offered to the public and made available to the public on Lkatee’s website. Plaintiff alleges that due to the widespread access barriers Plaintiff encountered on Lkatee’s website, Plaintiff has been deterred from obtaining full and equal access to the website.

ANALYSIS:

“In any action or administrative proceeding commenced pursuant to this chapter, the court or agency, in its discretion, may allow the prevailing party, other than the United States, a reasonable attorney’s fee, including litigation expenses, and costs, and the United States shall be liable for the foregoing the same as a private individual.” (42 U.S.C. § 12205.)

The court, in its discretion, may award to the prevailing party reasonable attorney’s fees and costs if it finds that the plaintiff’s action is “frivolous, unreasonable or groundless, or that the plaintiff continued to litigate after it clearly became so.” (Christianburg Garment Co. v. EEOC (1978) 434 U.S. 412, 422.) The award of attorneys’ fees to prevailing defendants in meritless lawsuits is intended to “protect defendants from burdensome litigation having no legal or factual basis.” (Ibid., at p. 420.) A fee award turns on whether the plaintiff had a colorable claim; California courts award attorneys’ fees where plaintiff’s claims were without foundation or completely groundless. (See, e.g., Bond v. Pulsar Video Productions (1996) 50 Cal.App.4th 918, 921-925 [awarding fees where plaintiff’s claims were frivolous and without foundation]; Cummings v. Benco Building Service (1992) 11 Cal.App.4th 1383.)

Lkatee moves for an order awarding attorneys’ fees as the prevailing party in this action on the grounds that Plaintiff’s action was frivolous, unreasonable and groundless. On March 13, 2026, the Court granted Lkatee’s motion for summary judgment on the basis that Lkatee had no right or duty to modify the allegedly discriminatory website, nor any ability to control or direct its contents. (3/13/2026 Minute Order.)

Lkatee argues that Plaintiff continued to assert her claims against Lkatee after discovery established that Lkatee did not own, operate, maintain, or have control over the website’s content or accessibility features. (Mot., pp. 4:28-5:2.) Thus, Lkatee argues that “Plaintiff’s claims against Defendant lacked a factual foundation as to a necessary element of liability.” (Mot., p. 5:3-4.)

In the opposition, Plaintiff asserts that the franchisee agreement identifying OFD America, LLC as the franchisor, is not a publicly available document and the public records identified Lkatee as the operator of the store. (RJN Ex. F [Kwon Decl.] ¶ 5, Ex. A; Jankowski Decl., ¶ 2.) Plaintiff further asserts that it did not see the franchisee agreement until Lkatee filed the motion for the summary judgment. (RJN Ex. F, ¶¶ 5–6, Ex. A; Jankowski Decl., ¶ 7.) Lkatee did not serve its full verified discovery responses, including the franchisee agreement, until February 18, 2026, two days before the opposition to the motion for summary judgment was due. (Jankowski Decl., ¶¶ 3–8, Exs. 1–2.)

The Court does not find that Plaintiff's claims against Lkatee were frivolous, unreasonable, or without foundation. At the time this action was filed and up through the summary judgment motion, Plaintiff had a reasonable factual basis for assuming that Lkatee oversaw the website. Indeed, the Court did not indicate that Plaintiff's claims were frivolous in its ruling on the motion for summary judgment. To the contrary, the Court acknowledged that the specific issue presented—whether a franchisee can be held liable for accessibility violations on a website that is wholly controlled by the franchisor—was a novel one, and that neither the parties nor the Court had identified any authority directly addressing that particular circumstance. (3/13/2026 Minute Order.)

Under *Christianburg*, Courts must avoid exactly what Lkatee demands here: “[I]t is important that a district court resist the understandable temptation to engage in post hoc reasoning by concluding that, because a plaintiff did not ultimately prevail, the action must have been unreasonable or without foundation.” (*Christianburg Garment Co. v. EEOC* (1978) 434 U.S. 412, 421-422.)

Thus, the motion is DENIED.

RULING:

Defendant Lkatee Collective, Inc.'s Motion for Attorney Fees is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.